

# ***SUPREME COURT OF THE UNITED STATES GRANTED & NOTED LIST – OCTOBER TERM 2008***

***As of June 29, 2009***

(Final List as of 8/25/09; Revised 4/12/23)

**105, Orig.\*      *KANSAS V. COLORADO***

Order: 6/9/08 – Set for Oral Argument

Argument Date: 12/1/08

Author: J. Alito

Result: **EXCEPTION OVERRULED**

Decided: 3/9/09

Other: Chief Justice (C)

**06-1249      CSX      *WYETH V. LEVINE***

Court: SC-VT

Argument Date: 11/3/08

Author: J. Stevens

Result: **AFFIRMED**

Grant: 1/18/08

Decided: 3/4/09

Other: Breyer (C); Thomas (C/J)

Alito (D)

**06-1595#      CFX      *CRAWFORD V. METROPOLITAN GOVERNMENT OF NASHVILLE  
AND DAVIDSON CTY.***

Court: USCA-6

Argument Date: 10/8/08

Author: J. Souter

Result: **REVERSED AND REMANDED**

Grant: 1/18/08

Decided: 1/26/09

Other: Alito (C/J)

**06-11206#      CFY      *CHAMBERS V. UNITED STATES***

Court: USCA-7

Argument Date: 11/10/08

Author: J. Breyer

Result: **REVERSED AND REMANDED**

Grant: 4/21/08

Decided: 1/13/09

Other: Alito (C/J)

**07-463      CFX      *SUMMERS V. EARTH ISLAND INSTITUTE***

Court: USCA-9

Argument Date: 10/8/08

Author: J. Scalia

Result: **REVERSED IN PART AND AFFIRMED IN PART**

Grant: 1/18/08

Decided: 3/3/09

Other: Kennedy (C); Breyer (D)

**07-499      CFX      *NEGUSIE V. HOLDER, ATT'Y GEN.***

Court: USCA-5

Argument Date: 11/5/08

Author: J. Kennedy

Result: **REVERSED AND REMANDED**

Grant: 3/17/08

Decided: 3/3/09

Other: Scalia (C); Stevens (C/P, D/P)

Thomas (D)

# SUPREME COURT OF THE UNITED STATES

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| <b>07-512#</b> | <b>CFX</b> | <b>PACIFIC BELL TELEPHONE CO. V. LINKLINE COMMUNICATIONS</b> |                                      |
|                |            | Court: USCA-9                                                | Grant: 6/23/08                       |
|                |            | Argument Date: 12/8/08                                       | Decided: 2/25/09                     |
|                |            | Author: Chief Justice                                        | Other: Breyer (C/J)                  |
|                |            | Result: <b>REVERSED AND REMANDED</b>                         |                                      |
| <b>07-513</b>  | <b>CFY</b> | <b>HERRING V. UNITED STATES</b>                              |                                      |
|                |            | Court: USCA-11                                               | Grant: 2/19/08                       |
|                |            | Argument Date: 10/7/08                                       | Decided: 1/14/09                     |
|                |            | Author: Chief Justice                                        | Other: Ginsburg (D); Breyer (D)      |
|                |            | Result: <b>AFFIRMED</b>                                      |                                      |
| <b>07-526</b>  | <b>CFX</b> | <b>CARCIERI, GOV. OF RI V. SALAZAR, SEC. OF INTERIOR</b>     |                                      |
|                |            | Court: USCA-1                                                | Grant: 2/25/08                       |
|                |            | Argument Date: 11/3/08                                       | Decided: 2/24/09                     |
|                |            | Author: J. Thomas                                            | Other: Breyer (C); Souter (C/P, D/P) |
|                |            |                                                              | Stevens (D)                          |
|                |            | Result: <b>REVERSED</b>                                      |                                      |
| <b>07-542</b>  | <b>CSY</b> | <b>ARIZONA V. GANT</b>                                       |                                      |
|                |            | Court: SC-AZ                                                 | Grant: 2/25/08                       |
|                |            | Argument Date: 10/7/08                                       | Decided: 4/21/09                     |
|                |            | Author: J. Stevens                                           | Other: Scalia (C); Breyer (D)        |
|                |            |                                                              | Alito (D)                            |
|                |            | Result: <b>AFFIRMED</b>                                      |                                      |
| <b>07-543</b>  | <b>CFX</b> | <b>AT&amp;T CORPORATION V. HULTEEN</b>                       |                                      |
|                |            | Court: USCA-9                                                | Grant: 6/23/08                       |
|                |            | Argument Date: 12/10/08                                      | Decided: 5/18/09                     |
|                |            | Author: J. Souter                                            | Other: Stevens (C); Ginsburg (D)     |
|                |            | Result: <b>REVERSED</b>                                      |                                      |
| <b>07-544</b>  | <b>CFH</b> | <b>HEDGPETH V. PULIDO</b>                                    |                                      |
|                |            | Court: USCA-9                                                | Grant: 2/25/08                       |
|                |            | Argument Date: 10/15/08                                      | Decided: 12/2/08                     |
|                |            | Author: Per Curiam                                           | Other: Stevens (D)                   |
|                |            | Result: <b>VACATED AND REMANDED</b>                          |                                      |

# SUPREME COURT OF THE UNITED STATES

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| <b>07-562</b>  | <b>CFX</b> | <b>ALTRIA GROUP V. GOOD</b><br>Court: USCA-1<br>Argument Date: 10/6/08<br>Author: J. Stevens<br>Result: <b>AFFIRMED AND REMANDED</b>                            | Grant: 1/18/08<br>Decided: 12/15/08<br>Other: Thomas (D)                                                               |
| <b>07-581</b>  | <b>CFX</b> | <b>14 PENN PLAZA LLC V. PYETT</b><br>Court: USCA-2<br>Argument Date: 12/1/08<br>Author: J. Thomas<br>Result: <b>REVERSED AND REMANDED</b>                       | Grant: 2/19/08<br>Decided: 4/1/09<br>Other: Stevens (D); Souter (D)                                                    |
| <b>07-582</b>  | <b>CFX</b> | <b>FCC V. FOX TELEVISION STATIONS</b><br>Court: USCA-2<br>Argument Date: 11/4/08<br>Author: J. Scalia<br><br>Result: <b>REVERSED AND REMANDED</b>               | Grant: 3/17/08<br>Decided: 4/28/09<br>Other: Thomas (C); Kennedy (C/P, C/J)<br>Stevens (D); Ginsburg (D)<br>Breyer (D) |
| <b>07-588)</b> | <b>CFX</b> | <b>ENTERGY V. RIVERKEEPER, INC.</b>                                                                                                                             |                                                                                                                        |
| <b>07-589)</b> | <b>CFX</b> | <b>PSEG FOSSIL LLC V. RIVERKEEPER, INC.</b>                                                                                                                     |                                                                                                                        |
| <b>07-597)</b> | <b>CFX</b> | <b>UTILITY WATER ACT GROUP V. RIVERKEEPER, INC.</b><br>Court: USCA-2<br>Argument Date: 12/2/08<br>Author: J. Scalia<br><br>Result: <b>REVERSED AND REMANDED</b> | Grant: 4/14/08<br>Decided: 4/1/09<br>Other: Breyer (C/P, D/P)<br>Stevens (D)                                           |
| <b>07-591</b>  | <b>CSY</b> | <b>MELLENDEZ-DIAZ V. MASSACHUSETTS</b><br>Court: App. Ct.-MA<br>Argument Date: 11/10/08<br>Author: J. Scalia<br>Result: <b>REVERSED AND REMANDED</b>            | Grant: 3/17/08<br>Decided: 6/25/09<br>Other: Thomas (C); Kennedy (D)                                                   |
| <b>07-608</b>  | <b>CFY</b> | <b>UNITED STATES V. HAYES</b><br>Court: USCA-4<br>Argument Date: 11/10/08<br>Author: J. Ginsburg<br>Result: <b>REVERSED AND REMANDED</b>                        | Grant: 3/24/08<br>Decided: 2/24/09<br>Other: Chief Justice (D)                                                         |

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| <b>07-610*</b>  | <b>CFX</b> | <b><i>LOCKE V. KARASS</i></b><br>Court: USCA-1<br>Argument Date: 10/6/08<br>Author: J. Breyer<br>Result: <b>AFFIRMED</b>                         | Grant: 2/19/08<br>Decided: 1/21/09<br>Other: Alito (C)                                           |
|                 |            |                                                                                                                                                  |                                                                                                  |
| <b>07-615**</b> | <b>CFX</b> | <b><i>MINISTRY OF DEFENSE OF IRAN V. ELAHI</i></b><br>Court: USCA-9<br>Argument Date: 1/12/09<br>Author: J. Breyer<br>Result: <b>REVERSED</b>    | Grant: 6/23/08<br>Decided: 4/21/09<br>Other: Kennedy (C/P, D/P)                                  |
|                 |            |                                                                                                                                                  |                                                                                                  |
| <b>07-636*</b>  | <b>CFX</b> | <b><i>KENNEDY V. PLAN ADM. FOR DuPONT SAVINGS</i></b><br>Court: USCA-5<br>Argument Date: 10/7/08<br>Author: J. Souter<br>Result: <b>AFFIRMED</b> | Grant: 2/19/08<br>Decided: 1/26/09                                                               |
|                 |            |                                                                                                                                                  |                                                                                                  |
| <b>07-665#</b>  | <b>CFX</b> | <b><i>PLEASANT GROVE CITY, UT V. SUMMUM</i></b><br>Court: USCA-10<br>Argument Date: 11/12/08<br>Author: J. Alito<br>Result: <b>REVERSED</b>      | Grant: 3/31/08<br>Decided: 2/25/09<br>Other: Stevens (C); Scalia (C)<br>Breyer (C); Souter (C/J) |
|                 |            |                                                                                                                                                  |                                                                                                  |
| <b>07-689</b>   | <b>CSX</b> | <b><i>BARTLETT V. STRICKLAND</i></b><br>Court: SC-NC<br>Argument Date: 10/14/08<br>Author: J. Kennedy<br>Result: <b>AFFIRMED</b>                 | Grant: 3/17/08<br>Decided: 3/9/09<br>Other: Thomas (C/J); Souter (D)<br>Ginsburg (D); Breyer (D) |
|                 |            |                                                                                                                                                  |                                                                                                  |
| <b>07-751*</b>  | <b>CFX</b> | <b><i>PEARSON V. CALLAHAN</i></b><br>Court: USCA-10<br>Argument Date: 10/14/08<br>Author: J. Alito<br>Result: <b>REVERSED</b>                    | Grant: 3/24/08<br>Decided: 1/21/09                                                               |

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| <b>07-772</b>                    | <b>CFH</b>               | <b><i>WADDINGTON, SUPT., WA V. SARAUSAD</i></b><br>Court: USCA-9<br>Argument Date: 10/15/08<br>Author: J. Thomas<br>Result: <b>REVERSED AND REMANDED</b>                                                                            | Grant: 3/17/08<br>Decided: 1/21/09<br>Other: Souter (D)                                                          |
| <b>07-773</b>                    | <b>CFX</b>               | <b><i>VADEN V. DISCOVER BANK</i></b><br>Court: USCA-4<br>Argument Date: 10/6/08<br>Author: J. Ginsburg<br>Result: <b>REVERSED AND REMANDED</b>                                                                                      | Grant: 3/17/08<br>Decided: 3/9/09<br>Other: Chief Justice (C/P, D/P)                                             |
| <b>07-854*</b>                   | <b>CFX</b>               | <b><i>VAN DE KAMP V. GOLDSTEIN</i></b><br>Court: USCA-9<br>Argument Date: 11/5/08<br>Author: J. Breyer<br>Result: <b>REVERSED AND REMANDED</b>                                                                                      | Grant: 4/14/08<br>Decided: 1/26/09                                                                               |
| <b>07-869</b>                    | <b>CFX</b>               | <b><i>YSURSA, ID SEC. OF STATE V. POCATELLO EDUCATION ASSN.</i></b><br>Court: USCA-9<br>Argument Date: 11/3/08<br>Author: Chief Justice<br>Result: <b>REVERSED</b>                                                                  | Grant: 3/31/08<br>Decided: 2/24/09<br>Other: Ginsburg (C/P, C/J)<br>Breyer (C/P, D/P); Stevens (D)<br>Souter (D) |
| <b>07-901</b>                    | <b>CSY</b>               | <b><i>OREGON V. ICE</i></b><br>Court: SC-OR<br>Argument Date: 10/14/08<br>Author: J. Ginsburg<br>Result: <b>REVERSED AND REMANDED</b>                                                                                               | Grant: 3/17/08<br>Decided: 1/14/09<br>Other: Scalia (D)                                                          |
| <b>07-984)</b><br><b>07-990)</b> | <b>CFX</b><br><b>CFX</b> | <b><i>COEUR ALASKA, INC. V. SOUTHEAST ALASKA CONSERVATION</i></b><br><b><i>ALASKA V. SOUTHEAST ALASKA CONSERVATION</i></b><br>Court: USCA-9<br>Argument Date: 1/12/09<br>Author: J. Kennedy<br>Result: <b>REVERSED AND REMANDED</b> | Grant: 6/27/08<br>Decided: 6/22/09<br>Other: Breyer (C); Scalia (C/P, C/J)<br>Ginsburg (D)                       |

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| <b>07-1015</b>                       | <b>CFX</b>               | <b><i>ASHCROFT, FORMER ATT'Y GEN. V. IQBAL</i></b><br>Court: USCA-2<br>Argument Date: 12/10/08<br>Author: J. Kennedy<br>Result: <b>REVERSED AND REMANDED</b>                                        | Grant: 6/16/08<br>Decided: 5/18/09<br>Other: Souter (D); Breyer (D)                              |
| <b>07-1059)*</b><br><b>07-1078)*</b> | <b>CFX</b><br><b>CFX</b> | <b><i>UNITED STATES V. EURODIF S. A.</i></b><br><b><i>USEC INC. V. EURODIF S. A.</i></b><br>Court: USCA-Fed.<br>Argument Date: 11/4/08<br>Author: J. Souter<br>Result: <b>REVERSED AND REMANDED</b> | Grant: 4/21/08<br>Decided: 1/26/09                                                               |
| <b>07-1090)*</b><br><b>08-539 )*</b> | <b>CFX</b><br><b>CFX</b> | <b><i>IRAQ V. BEATY</i></b><br><b><i>IRAQ V. SIMON</i></b><br>Court: USCA-DC<br>Argument Date: 4/20/09<br>Author: J. Scalia<br>Result: <b>REVERSED</b>                                              | Grant: 1/9/09<br>Decided: 6/8/09                                                                 |
| <b>07-1114</b>                       | <b>CFH</b>               | <b><i>CONE V. BELL</i></b><br>Court: USCA-6<br>Argument Date: 12/9/08<br>Author: J. Stevens<br>Result: <b>VACATED AND REMANDED</b>                                                                  | Grant: 6/23/08<br>Decided: 4/28/09<br>Other: Chief Justice (C/J); Alito (C/P, D/P)<br>Thomas (D) |
| <b>07-1122*</b>                      | <b>CSY</b>               | <b><i>ARIZONA V. JOHNSON</i></b><br>Court: CA-AZ, Div. 2<br>Argument Date: 12/9/08<br>Author: J. Ginsburg<br>Result: <b>REVERSED AND REMANDED</b>                                                   | Grant: 6/23/08<br>Decided: 1/26/09                                                               |
| <b>07-1125*</b>                      | <b>CFX</b>               | <b><i>FITZGERALD V. BARNSTABLE SCHOOL COMMITTEE</i></b><br>Court: USCA-1<br>Argument Date: 12/2/08<br>Author: J. Alito<br>Result: <b>REVERSED AND REMANDED</b>                                      | Grant: 6/9/08<br>Decided: 1/21/09                                                                |

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| <b>07-1209</b>    | <b>CFX</b> | <b>SHINSEKI, SEC. OF VA V. SANDERS</b><br>Court: USCA-Fed.<br>Argument Date: 12/8/08<br>Author: J. Breyer<br>Result: <b>Shinseki v. Sanders</b> is REVERSED AND REMANDED; and<br><b>Shinseki v. Simmons</b> is VACATED AND REMANDED | Grant: 6/16/08<br>Decided: 4/21/09<br>Other: Souter (D)                         |
| <b>07-1216</b>    | <b>CSX</b> | <b>PHILIP MORRIS USA INC. V. WILLIAMS</b><br>Court: SC-OR<br>Argument Date: 12/3/08<br>Author: Per Curiam<br>Result: <b>DISMISSED AS IMPROVIDENTLY GRANTED</b>                                                                      | Grant: 6/9/08<br>Decided: 3/31/09                                               |
| <b>07-1223</b>    | <b>CFH</b> | <b>BELL V. KELLY</b><br>Court: USCA-4<br>Argument Date: 11/12/08<br>Author: Per Curiam<br>Result: <b>DISMISSED AS IMPROVIDENTLY GRANTED</b>                                                                                         | Grant: 5/12/08<br>Decided: 11/17/08                                             |
| <b>07-1239</b>    | <b>CFX</b> | <b>WINTER, SEC. OF NAVY V. NATURAL RESOURCES</b><br>Court: USCA-9<br>Argument Date: 10/8/08<br>Author: Chief Justice<br>Result: <b>REVERSED; PRELIMINARY INJUNCTION VACATED IN PART</b>                                             | Grant: 6/23/08<br>Decided: 11/12/08<br>Other: Breyer (C/P, D/P)<br>Ginsburg (D) |
| <b>07-1309</b>    | <b>CFY</b> | <b>BOYLE V. UNITED STATES</b><br>Court: USCA-2<br>Argument Date: 1/14/09<br>Author: J. Alito<br>Result: <b>AFFIRMED</b>                                                                                                             | Grant: 10/1/08<br>Decided: 6/8/09<br>Other: Stevens (D)                         |
| <b>07-1315**#</b> | <b>CFH</b> | <b>KNOWLES V. MIRZAYANCE</b><br>Court: USCA-9<br>Argument Date: 1/13/09<br>Author: J. Thomas<br>Result: <b>REVERSED AND REMANDED</b>                                                                                                | Grant: 6/27/08<br>Decided: 3/24/09                                              |

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| <b>07-1356</b>               | <b>CSY</b>         | <b><i>KANSAS V. VENTRIS</i></b><br>Court: SC-KS<br>Argument Date: 1/21/09<br>Author: J. Scalia<br>Result: <b>REVERSED AND REMANDED</b>                                  | Grant: 10/1/08<br>Decided: 4/29/09<br>Other: Stevens (D)                           |
| <b>07-1372*</b>              | <b>CSX</b>         | <b><i>HAWAII V. OFFICE OF HAWAIIAN AFFAIRS</i></b><br>Court: SC-HI<br>Argument Date: 2/25/09<br>Author: J. Alito<br>Result: <b>REVERSED AND REMANDED</b>                | Grant: 10/1/08<br>Decided: 3/31/09                                                 |
| <b>07-1410*</b>              | <b>CFX</b>         | <b><i>UNITED STATES V. NAVAJO NATION</i></b><br>Court: USCA-Fed.<br>Argument Date: 2/23/09<br>Author: J. Scalia<br>Result: <b>REVERSED AND REMANDED</b>                 | Grant: 10/1/08<br>Decided: 4/6/09<br>Other: Souter (C)                             |
| <b>07-1428)<br/>08-328 )</b> | <b>CFX<br/>CFX</b> | <b><i>RICCI V. DeSTEFANO</i><br/><i>RICCI V. DeSTEFANO</i></b><br>Court: USCA-2<br>Argument Date: 4/22/09<br>Author: J. Kennedy<br>Result: <b>REVERSED AND REMANDED</b> | Grant: 1/9/09<br>Decided: 6/29/09<br>Other: Scalia (C); Alito (C); Ginsburg (D)    |
| <b>07-1437*</b>              | <b>CFX</b>         | <b><i>CARLSBAD TECHNOLOGY, INC. V. HIF BIO, INC.</i></b><br>Court: USCA-Fed.<br>Argument Date: 2/24/09<br>Author: J. Thomas<br>Result: <b>REVERSED AND REMANDED</b>     | Grant: 10/14/08<br>Decided: 5/4/09<br>Other: Stevens (C); Scalia (C)<br>Breyer (C) |
| <b>07-1529</b>               | <b>CSY</b>         | <b><i>MONTEJO V. LOUISIANA</i></b><br>Court: SC-LA<br>Argument Date: 1/13/09<br>Author: J. Scalia<br>Result: <b>VACATED AND REMANDED</b>                                | Grant: 10/1/08<br>Decided: 5/26/09<br>Other: Alito (C); Stevens (D)<br>Breyer (D)  |



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| <b>07-1601)</b>     | <b>CFX</b>     | <b>BURLINGTON NO. &amp; SANTA FE R. CO. V. UNITED STATES</b> |                                          |
| <b>07-1607)</b>     | <b>CFX</b>     | <b>SHELL OIL CO. V. UNITED STATES</b>                        |                                          |
|                     |                | Court: USCA-9                                                | Grant: 10/1/08                           |
|                     |                | Argument Date: 2/24/09                                       | Decided: 5/4/09                          |
|                     |                | Author: J. Stevens                                           | Other: Ginsburg (D)                      |
|                     |                | Result: <b>REVERSED AND REMANDED</b>                         |                                          |
| <br><b>07-6984*</b> | <br><b>CFH</b> | <br><b>JIMENEZ V. QUARTERMAN, DIR., TX DOC</b>               |                                          |
|                     |                | Court: USCA-5                                                | Grant: 3/17/08                           |
|                     |                | Argument Date: 11/4/08                                       | Decided: 1/13/09                         |
|                     |                | Author: J. Thomas                                            |                                          |
|                     |                | Result: <b>REVERSED AND REMANDED</b>                         |                                          |
| <br><b>07-8521</b>  | <br><b>CFH</b> | <br><b>HARBISON V. BELL</b>                                  |                                          |
|                     |                | Court: USCA-6                                                | Grant: 6/23/08                           |
|                     |                | Argument Date: 1/12/09                                       | Decided: 4/1/09                          |
|                     |                | Author: J. Stevens                                           | Other: Chief Justice (C/J); Thomas (C/J) |
|                     |                |                                                              | Scalia (C/P, D/P)                        |
|                     |                | Result: <b>REVERSED</b>                                      |                                          |
| <br><b>07-9712</b>  | <br><b>CFY</b> | <br><b>PUCKETT V. UNITED STATES</b>                          |                                          |
|                     |                | Court: USCA-5                                                | Grant: 10/1/08                           |
|                     |                | Argument Date: 1/14/09                                       | Decided: 3/25/09                         |
|                     |                | Author: J. Scalia                                            | Other: Souter (D)                        |
|                     |                | Result: <b>AFFIRMED</b>                                      |                                          |
| <br><b>07-9995*</b> | <br><b>CSY</b> | <br><b>RIVERA V. ILLINOIS</b>                                |                                          |
|                     |                | Court: SC-IL                                                 | Grant: 10/1/08                           |
|                     |                | Argument Date: 2/23/09                                       | Decided: 3/31/09                         |
|                     |                | Author: J. Ginsburg                                          |                                          |
|                     |                | Result: <b>AFFIRMED</b>                                      |                                          |
| <br><b>07-10374</b> | <br><b>CSX</b> | <br><b>HAYWOOD V. DROWN</b>                                  |                                          |
|                     |                | Court: CA-NY                                                 | Grant: 6/16/08                           |
|                     |                | Argument Date: 12/3/08                                       | Decided: 5/26/09                         |
|                     |                | Author: J. Stevens                                           | Other: Thomas (D)                        |
|                     |                | Result: <b>REVERSED AND REMANDED</b>                         |                                          |

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| <p style="text-align: center;"><b><i>SUPREME COURT OF THE UNITED STATES</i></b><br/> <b><i>GRANTED &amp; NOTED LIST – OCTOBER TERM 2008</i></b></p> |
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|-----------------|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|
| <b>07-10441</b> | <b>CFY</b> | <b><i>CORLEY V. UNITED STATES</i></b><br>Court: USCA-3<br>Argument Date: 1/21/09<br>Author: J. Souter<br>Result: <b>VACATED AND REMANDED</b>                     | Grant: 10/1/08<br>Decided: 4/6/09<br>Other: Alito (D)                                     |
| <b>08-6</b>     | <b>CFX</b> | <b><i>DISTRICT ATTY'S OFFICE V. OSBORNE</i></b><br>Court: USCA-9<br>Argument Date: 3/2/09<br>Author: Chief Justice<br>Result: <b>REVERSED AND REMANDED</b>       | Grant: 11/3/08<br>Decided: 6/18/09<br>Other: Alito (C); Stevens (D)<br>Souter (D)         |
| <b>08-22</b>    | <b>CSX</b> | <b><i>CAPERTON V. A.T. MASSEY COAL CO., INC.</i></b><br>Court: SC App.-WV<br>Argument Date: 3/3/09<br>Author: J. Kennedy<br>Result: <b>REVERSED AND REMANDED</b> | Grant: 11/14/08<br>Decided: 6/8/09<br>Other: Chief Justice (D); Scalia (D)                |
| <b>08-67</b>    | <b>CFY</b> | <b><i>YEAGER V. UNITED STATES</i></b><br>Court: USCA-5<br>Argument Date: 3/23/09<br>Author: J. Stevens<br>Result: <b>REVERSED AND REMANDED</b>                   | Grant: 11/14/08<br>Decided: 6/18/09<br>Other: Kennedy (C/P, C/J); Scalia (D)<br>Alito (D) |
| <b>08-88</b>    | <b>CSY</b> | <b><i>VERMONT V. BRILLON</i></b><br>Court: SC-VT<br>Argument Date: 1/13/09<br>Author: J. Ginsburg<br>Result: <b>REVERSED AND REMANDED</b>                        | Grant: 10/1/08<br>Decided: 3/9/09<br>Other: Breyer (D)                                    |
| <b>08-108#</b>  | <b>CFY</b> | <b><i>FLORES-FIGUEROA V. UNITED STATES</i></b><br>Court: USCA-8<br>Argument Date: 2/25/09<br>Author: J. Breyer<br>Result: <b>REVERSED AND REMANDED</b>           | Grant: 10/20/08<br>Decided: 5/4/09<br>Other: Scalia (C/P, C/J); Alito (C/P, C/J)          |

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| <p style="text-align: center;"><i><b>SUPREME COURT OF THE UNITED STATES</b></i><br/> <b>GRANTED &amp; NOTED LIST – OCTOBER TERM 2008</b></p> |
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| <b>08-146</b>  | <b>CFX</b> | <b>ARTHUR ANDERSEN LLP V. CARLISLE</b><br>Court: USCA-6<br>Argument Date: 3/3/09<br>Author: J. Scalia<br>Result: <b>REVERSED AND REMANDED</b>          | Grant: 11/7/08<br>Decided: 5/4/09<br>Other: Souter (D)                |
| <b>08-192*</b> | <b>CFY</b> | <b>ABUELHAWA V. UNITED STATES</b><br>Court: USCA-4<br>Argument Date: 3/4/09<br>Author: J. Souter<br>Result: <b>REVERSED AND REMANDED</b>               | Grant: 11/14/08<br>Decided: 5/26/09                                   |
| <b>08-214</b>  | <b>CFX</b> | <b>ATLANTIC SOUNDING CO. V. TOWNSEND</b><br>Court: USCA-11<br>Argument Date: 3/2/09<br>Author: J. Thomas<br>Result: <b>AFFIRMED AND REMANDED</b>       | Grant: 11/3/08<br>Decided: 6/25/09<br>Other: Alito (D)                |
| <b>08-267</b>  | <b>CMY</b> | <b>UNITED STATES V. DENEDO</b><br>Court: USCA-AF<br>Argument Date: 3/25/09<br>Author: J. Kennedy<br>Result: <b>AFFIRMED AND REMANDED</b>               | Grant: 11/25/08<br>Decided: 6/8/09<br>Other: Chief Justice (C/P, D/P) |
| <b>08-289)</b> | <b>CFX</b> | <b>HORNE V. FLORES</b>                                                                                                                                 |                                                                       |
| <b>08-294)</b> | <b>CFX</b> | <b>SPEAKER OF THE AZ HOUSE V. FLORES</b><br>Court: USCA-9<br>Argument Date: 4/20/09<br>Author: J. Alito<br>Result: <b>REVERSED AND REMANDED</b>        | Grant: 1/9/09<br>Decided: 6/25/09<br>Other: Breyer (D)                |
| <b>08-295)</b> | <b>CFX</b> | <b>TRAVELERS INDEMNITY CO. V. BAILEY</b>                                                                                                               |                                                                       |
| <b>08-307)</b> | <b>CFX</b> | <b>COMMON LAW SETTLEMENT COUNSEL V. BAILEY</b><br>Court: USCA-2<br>Argument Date: 3/30/09<br>Author: J. Souter<br>Result: <b>REVERSED AND REMANDED</b> | Grant: 12/12/08<br>Decided: 6/18/09<br>Other: Stevens (D)             |

*SUPREME COURT OF THE UNITED STATES*  
***GRANTED & NOTED LIST – OCTOBER TERM 2008***

**08-305 CFX FOREST GROVE SCHOOL DISTRICT V. T. A.**

|                         |                   |
|-------------------------|-------------------|
| Court: USCA-9           | Grant: 1/16/09    |
| Argument Date: 4/28/09  | Decided: 6/22/09  |
| Author: J. Stevens      | Other: Souter (D) |
| Result: <b>AFFIRMED</b> |                   |

08-310 CSX POLAR TANKERS, INC. V. CITY OF VALDEZ, AK.

|                                      |                                 |
|--------------------------------------|---------------------------------|
| Court: SC-AK                         | Grant: 12/12/08                 |
| Argument Date: 4/1/09                | Decided: 6/15/09                |
| Author: J. Breyer                    | Other: Chief Justice (C/P, C/J) |
|                                      | Alito (C/P, C/J); Stevens (D)   |
| Result: <b>REVERSED AND REMANDED</b> |                                 |

**08-322            ATX    NORTHWEST AUSTIN MUN. UTIL. V. HOLDER, ATT'Y GEN.**

|                                      |                            |
|--------------------------------------|----------------------------|
| Court: USDC-DC                       | Noted: 1/9/09              |
| Argument Date: 4/29/09               | Decided: 6/22/09           |
| Author: Chief Justice                | Other: Thomas (C/J/P, D/P) |
| Result: <b>REVERSED AND REMANDED</b> |                            |

**08-441 CFX GROSS V. FBL FINANCIAL SERVICES, INC.**

|                                     |                                |
|-------------------------------------|--------------------------------|
| Court: USCA-8                       | Grant: 12/5/08                 |
| Argument Date: 3/31/09              | Decided: 6/18/09               |
| Author: J. Thomas                   | Other: Stevens (D); Breyer (D) |
| Result: <b>VACATED AND REMANDED</b> |                                |

**08-453 CFX CUOMO, ATT'Y GEN. OF NY V. CLEARING HOUSE ASSOC.**

|                                                      |                          |
|------------------------------------------------------|--------------------------|
| Court: USCA-2                                        | Grant: 1/16/09           |
| Argument Date: 4/28/09                               | Decided: 6/29/09         |
| Author: J. Scalia                                    | Other: Thomas (C/P, D/P) |
| Result: <b>AFFIRMED IN PART AND REVERSED IN PART</b> |                          |

**08-479 CFX SAFFORD UNIFIED SCHOOL DISTRICT V. REDDING**

Court: USCA-9  
Argument Date: 4/21/09  
Author: J. Souter  
Grant: 1/16/09  
Decided: 6/25/09  
Other: Stevens (C/P, D/P)  
Ginsburg (C/P, D/P)  
Thomas (C/J/P, D/P)  
Result: **AFFIRMED IN PART, REVERSED IN PART, AND REMANDED**

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| <p style="text-align: center;"><i><b>SUPREME COURT OF THE UNITED STATES</b></i><br/> <b>GRANTED &amp; NOTED LIST – OCTOBER TERM 2008</b></p> |
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**08-495\*      CFX    *NIJHAWAN V. HOLDER, ATT'Y GEN.***

Court: USCA-3

Argument Date: 4/27/09

Author: J. Breyer

Result: **AFFIRMED**

Grant: 1/16/09

Decided: 6/15/09

**08-598\*      CFH    *BOBBY V. BIES***

Court: USCA-6

Argument Date: 4/27/09

Author: J. Ginsburg

Result: **REVERSED AND REMANDED**

Grant: 1/16/09

Decided: 6/1/09

**08-660\*      CFX    *UNITED STATES, EX REL. EISENSTEIN V. CITY OF NEW YORK***

Court: USCA-2

Argument Date: 4/21/09

Author: J. Thomas

Result: **AFFIRMED**

Grant: 1/16/09

Decided: 6/8/09

**08-681      CFX    *NKEN V. HOLDER, ATT'Y GEN.***

Court: USCA-4

Argument Date: 1/21/09

Author: Chief Justice

Result: **VACATED AND REMANDED**

Grant: 11/25/08

Decided: 4/22/09

Other: Kennedy (C); Alito (D)

**08-5274      CFY    *DEAN V. UNITED STATES***

Court: USCA-11

Argument Date: 3/4/09

Author: Chief Justice

Result: **AFFIRMED**

Grant: 11/14/08

Decided: 4/29/09

Other: Stevens (D); Breyer (D)

**NOTE:**

**08-368      CFH    *AL-MARRI V. SPAGONE***

Court: USCA-4

Argument Date: 4/27/09

Order: 3/6/09

Result: **VACATED AND REMANDED with instructions to dismiss as moot**

Grant: 12/5/08

# SUPREME COURT OF THE UNITED STATES

## GRANTED & NOTED LIST – OCTOBER TERM 2008

**08-205      ATX      CITIZENS UNITED V. FEC**  
 Court: USDC-DC  
 Argument Date: 3/24/09  
 Order: 6/29/09 – set for reargument  
 Reargument Date: 9/9/09

Noted: 11/14/08

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No. of Cases (Arguments) Made Available: **88 (79)**

Available Cases (Arguments) Disposed of: **87 (78)\***

WITHOUT ARGUMENT:

*Signed Opinion/Judgment -*

*Per Curiam -*

*Dismissed – 1 (1)*

WITH ARGUMENT:

*Signed Opinion/Judgment – 83 (74)*

*Per Curiam – 3 (3)*

*Dismissed -*

No. of Opinions for Argued Cases: **77 (Signed – 74; Per Curiam – 3)**

\*Note: No. 08-205 decision pending reargument of 9/9/09.

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|---------------|
| CASE CODE KEY |
|---------------|

☐ First Letter = Jurisdictional Grounds (ex. 99-804 CFY)

C - Certiorari

A - Appeal

Q - Certified Question

☐ Second Letter = Court Below (ex. 99-804 CFY)

S - State

F - U.S. Court of Appeals

T - Three-Judge District Court

M - U.S. Court of Appeals for the Armed Forces

O - Other Court

☐ Third Letter = Nature of Case (ex. 99-804 CFY)

X - Civil

Y - Criminal

H - Habeas Corpus or other collateral attack